

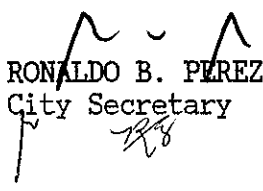


Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

CERTIFICATION

TO WHOM IT MAY CONCERN:

This is to certify that pursuant to Section 54 of the Local Government Code of 1991 and Section 4, Rule V, of Ordinance Numbered 27-92 adopting new rules of procedure for the Sangguniang Panlungsod (City Council) of Baguio, the attached Resolution Numbered 137-96 which was adopted on 27 March 1996, is deemed approved on 29 April 1996 after the lapse of ten (10) days from its submission to the Office of the City Mayor without the Honorable City Mayor having signed the Resolution or having communicated a veto to the Sangguniang Panlungsod (City Council).


RONALDO B. PEREZ
City Secretary

RBP/rca

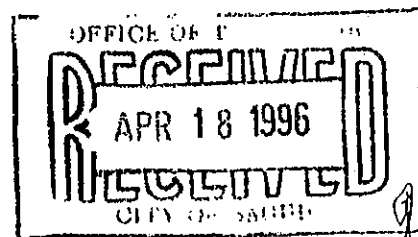


Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 27 MARCH 1996

PRESENT:

Hon. Daniel T. Fariñas, *Vice Mayor and Presiding Officer*;
Hon. Edilberto T. Claravall, *Member*;
Hon. Elmo M. Nevada, *Member*;
Hon. Virgilio F. Bautista, *Member*;
Hon. Eduardo R. Aguilar, *Member*;
Hon. Roberto C. Ortega, *Member*;
Hon. Lilia G. Yaranon, *Member*;
Hon. Edgardo E. Bilog, *Member*;
Hon. Galo D. Weygan, *Member*;
Hon. Delfin V. Balajadia, *Member*;
Hon. Nicasio S. Palaganas, *Member*;
Hon. Leandro B. Yangot, Jr., *Member*; and
Hon. Florence L. Ibarra, *Member*.



ABSENT:

Hon. Betty Lourdes F. Tabanda, *Member (on Leave)*; and
Hon. Richard A. Cariño, *Member (with Prior Verbal Notice)*.

RESOLUTION Numbered 137*
(series of 1996)

APPROVING THE RECOMMENDATIONS OF THE SANGGUNIANG PANLUNGSOD (CITY COUNCIL) COMMITTEE ON SOCIO-ECONOMIC & URBAN PLANNING AND LAND USE AS CONTAINED IN ITS 1ST INDORSEMENT DATED 22 MARCH 1996 ON THE LETTER DATED 18 MARCH 1996 OF THE DOMINICAN-MIRADOR WOMEN'S CLUB.

WHEREAS, the Sangguniang Panlungsod (City Council) adopted Resolution Numbered 153, series of 1992, entitled: *"Reserving and Setting Aside That Parcel of Public Land Bounded by the St. Anthony and St. Therese Streets and the Alcantara Property With An Area of 300 Square Meters, More or Less, Situated at Dominican-Mirador Barangay As the Future Site of the Dominican-Mirador Satellite Market"*;

WHEREAS, Mr. Mac. B. Flores, Jr., City Planning and Development Coordinator and Chairman, City Land Needs Identification and Survey Committee, in his 1st Indorsement dated 17 July 1995 stated that:

"Respectfully forwarded to, the Honorable, Sangguniang Panlungsod, Baguio, with the information that the Land Needs and Identification and Survey Committee had earlier officially identified an appropriate site specifically for the proposed Dominican-Mirador Barangay Satellite Market in response to Joint Resolution No. 4, s. 1991 of their Barangay Council and Barangay Development Council. Xeroxed copies of said joint resolution and Land Needs Identification Report, dated 21 June 1991, are hereto attached for ready reference. It is regrettable that we cannot identify a second site for another satellite market within the same barangay.

"In view of the foregoing, it is respectfully recommended that SP Resolution No. 153, series of 1992, which addressed Barangay Resolution No. 2, series of 1992, be therefore set aside."

WHEREAS, the Committee on Socio-Economic & Urban Planning and Land Use in its 3rd Indorsement dated 28 July 1995 stated that:

"x x x .

"This Committee notes the 1st Indorsement of the City Planning and Development Coordinator and Chairman of the City Land Needs Identification and Survey Committee, recommending that City Council Resolution No. 153-93 be set aside.

"It appears that the Dominican-Mirador Barangay was already informed of an appropriate site specifically for a satellite market which is situated at the junction of St. Anthony Street and the Reynoso property with an area of 500 square meters, more or less, per Joint Resolution No. 4-91 of the (Barangay Regular Council and Barangay Development Council) Dominican-Mirador Barangay.

"It is therefore recommended that City Council Resolution No. 153-92 which reserved a 300-square meter parcel of land bounded by the St. Anthony Street, St. Theresa Street and the Alcantara property at Dominican-Mirador Barangay be repealed but that the same parcel of land shall be declared in the name of the City of Baguio and reserved for public use.

"Further, this Committee recommends that the parcel of land previously identified and recommended on November 11, 1991 for official survey by the Survey Division of the DENR-CAR, Baguio City which is bounded on the North by St. Anthony St., on the East by Barangay Road, on the West by road and on the South by Bacoco residence be reiterated to be reserved for a satellite market at Dominican-Mirador Barangay."

Resolution Numbered 137, series of 1996, page 2.

WHEREAS, likewise considered by the Sangguniang Panlungsod is a letter dated 18 March 1996 addressed to Hon. Virgilio F. Bautista as Chairman of the Committee on Socio-Economic & Urban Planning and Land Use by Ms. Leonora B. Guinid, Ms. Felicidad L. Acong and Ms. Catherine L. Diaz, officers of the Dominican-Mirador Women's Club, to wit:

"The undersigned, concerned residents of our Barangay and officers of the Dominican-Mirador Women's Club, write you to follow up the status of the two Barangay Resolutions No. 4, series of 1991 and No. 2, series of 1992, which accordingly was referred to your Committee.

"The Barangay residents, watched helplessly as Mr. Lino Guinsad tore down his small house, cut pine trees and constructed a big concrete building at the site of the proposed Barangay satellite market and multi-purpose cooperative center. The said Mr. Lino Guinsad previously built a small house at the site of the proposed park at the rock formation and later sold such house despite an order of demolition and moved to the present site along Saint Anthony Street which is the site identified in Barangay Resolution No. 4, series of 1991. That the demolition orders were never carried out prompting Mr. Guinsad to secure tree-cutting permit by merely presenting a tax declaration to the authorities. After cutting the pine trees, said Guinsad constructed a big concrete building. The present Barangay officials never made any attempt to stop said Guinsad, instead, Punong Barangay Anthony Rosado, Sr. issued a certification to Guinsad to cut the pine trees that paved the way for Guinsad's construction of his present concrete house.

"Due to our complaints, the City Mayor issued a Notice of Demolition on the big construction of Guinsad but up to the present nothing has been done prompting us to suspect that no demolition order can ever be effected as far as Guinsad is concerned and what can prevent Guinsad from selling this second house and building again on public lands? Because of the non-implementation of the demolition Orders on Guinsad's illegally constructed buildings, more people invaded the site of the proposed park at the rock formation and at the site identified for a Barangay satellite market such that a certain Rafaela Sinaking enclosed with concrete fence, the proposed satellite market while a certain Docyogen constructed also a concrete house at the other end of the said site. The acts of these people are encouraging others to do likewise. Demolition Orders to them are inutile and useless.

"May we therefore kindly request that your office investigate why the demolition orders served to Mr. Lino Guinsad, Alfredo Docyogen and Rafaela Sinaking and others similarly situated in our Barangay are never implemented.

"Further, may we also request that your committee cause the proper delineation of the boundary of the Isabela Cultural Corporation (Jesuit property) and the public lands by the Lands Management Sector (LMS) of the Bureau of Lands, DENR, if only to identify the exact portions of the public lands identified in Barangay Resolution No. 4, series of 1991 and No. 2, series of 1992, as well as to determine any encroachment of the titled properties at the public lands.

"Thank you and more power."

WHEREAS, the Committee on Socio-Economic & Urban Planning and Land Use in its 1st Indorsement thereon dated 22 March 1996 stated that:

"x x x.

"This Committee respectfully recommends:

1. That an investigation be held by the City Council on this matter particularly on the matter of the non-execution of the demolition order issued by the City Mayor; and
2. That due to the failure of Punong Barangay Anthony M. Rosado Sr., to reply to the City Secretary's letter to him dated 16 August 1995 per his letter of August 8, 1995, the City Council already act on the report of this Committee contained in its 3rd Indorsement, dated 28 July 1995 (deferred per August 2, 1995 session minutes) on the recommendations of Mac B. Flores, City Planning and Development Coordinator, Baguio, relative to City Council Resolution No. 153-92."

NOW THEREFORE, on motion of Hon. Bautista, Hon. Nevada and Hon. Bilog, seconded by Hon. Palaganas, be it

RESOLVED, as it is hereby resolved, to approve the recommendations of the Sangguniang Panlungsod (City Council) Committee on Socio-Economic & Urban Planning and Land Use as contained in its 1st Indorsement dated 22 March 1996 on the letter dated 18 March 1996 of the Dominican-Mirador Women's Club to the effect:

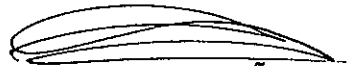
1. That an investigation be held by the Sangguniang Panlungsod particularly on the matter of the non-execution of the Demolition Orders issued by the City Mayor; and

Resolution Numbered 137, series of 1996, page 3.

2. That due to the failure of Punong Barangay Anthony M. Rosado, Sr. to reply to the City Secretary's letter to him dated 16 August 1995, the Sangguniang Panlungsod already act on the report of the same Committee contained in its 3rd Indorsement dated 28 July 1995 on the recommendations of Mr. Mac. B. Flores, Jr., City Planning and Development Coordinator, relative to Resolution Numbered 153, series of 1992.

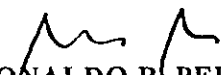
Unanimously adopted.

CERTIFIED CORRECT:



DANIEL T. FARIÑAS
Vice Mayor and
Presiding Officer

Attested:



RONALDO B. PEREZ
City Secretary

APPROVED:

MAURICIO G. DOMOGAN
City Mayor

*Not signed by the Mayor
See attached certification
as to the effectivity of this
resolution.*